



Labeling / No-Misbranding Attestation

ARKA Health, Inc. — Pre-Submission · Document 08 · Version 1.0 · June 9, 2026

1. Attestation

ARKA Health, Inc. attests that, as of **June 9, 2026**, no ARKA materials — product user interface and CDS cards, website, or investor and marketing materials — represent ARKA as “FDA-approved,” “FDA-cleared,” “FDA-registered,” “FDA-certified,” or “FDA-endorsed,” and that ARKA does not state or imply FDA endorsement of its software. ARKA describes ARKA-CLIN as *designed to meet the four Non-Device CDS criteria* under FD&C Act §520(o)(1)(E), and ARKA-INS as *administrative-support software* under §520(o)(1)(A). ARKA understands that this Pre-Submission seeks feedback only, and that any FDA feedback received will not be characterized as approval, clearance, registration, or endorsement.

2. Evidence

Repository scan. A case-insensitive scan of all product and website source surfaces (`app/`, `components/`, `lib/`, `public/`) for the patterns “FDA-approved,” “FDA-cleared,” “FDA-registered,” “FDA-certified,” and “FDA-endorsed” returned **0 matches**, performed June 9, 2026.

Standard on-card disclosure. Every ARKA CDS card detail carries the canonical disclosure (version 1.2.0, `lib/compliance/fda-disclosure.ts`):

“This recommendation is intended to support, not replace, clinical judgment. It is generated by ARKA, software designed to meet the four criteria for Non-Device Clinical Decision Support under FD&C Act §520(o)(1)(E) and FDA’s final guidance on Clinical Decision Support Software (January 2026). The clinician is responsible for the final decision.”

3. How this is maintained

Continuous-integration checks run on every push and pull request (`.github/workflows/go-live.yml`): a grep job verifies the canonical disclosure sentence is present in the card-footer helper and that the disclosure is appended to card builders, and `scripts/lint-cards.ts` enforces card-language conventions. Changes to the disclosure text or version trigger a regulatory copy review under ARKA’s change-control procedure.

4. Permitted phrasing following FDA feedback

If FDA provides concurring feedback on this Pre-Submission, ARKA will describe it only in factually accurate terms — for example, “*FDA provided written feedback concurring with our Non-Device CDS determination for ARKA-CLIN*” — and never as FDA approval, clearance, registration, certification, or endorsement.



ARKA HEALTH

remARKAbly precise

**FDA PRE-SUBMISSION
Q-SUBMISSION PROGRAM
LABELING ATTESTATION**

Arri Kanna Founder, ARKA Health, Inc. June 9, 2026